

UniNotes

LAW

Contract Law Complete Notes

A concise, structured overview of contract formation, terms, vitiating factors and remedies.

How to use these notes

Start with the key definitions, then use the tables/diagrams to connect ideas. Finish with the exam checklist. The aim is high information density: short wording, clear concepts, no filler.

1. Formation: the core sequence



A contract normally requires agreement plus legal enforceability. Always analyse the facts in sequence rather than jumping straight to breach.

2. Offer and acceptance

Offer	Must show willingness to be bound on stated terms.
Invitation to treat	Usually invites offers rather than being an offer itself.
Acceptance	Must mirror the offer; a counter-offer normally destroys the original offer.
Communication	Acceptance generally must be communicated, subject to recognised exceptions.
Revocation	An offer can usually be withdrawn before acceptance if revocation is effectively communicated.

3. Consideration and intention

Consideration is the value exchanged for a promise. It must be sufficient but need not be economically adequate. Past consideration is generally not good consideration unless an exception applies.

Intention to create legal relations is usually presumed in commercial agreements and generally not presumed in purely domestic/social arrangements, though both presumptions can be rebutted by evidence.

4. Contract terms

Condition	Major term; breach may permit termination + damages.
Warranty	Lesser term; breach usually gives damages only.

Innominate term	Remedy depends on seriousness/effect of breach.
Express term	Stated orally or in writing.
Implied term	Inserted by law, custom, facts or statute.

5. Problems affecting validity

Misrepresentation is a false statement of fact/law inducing the contract. Mistake, duress, undue influence and illegality can also affect validity or enforceability, depending on the doctrine and facts.

6. Remedies for breach

Damages aim primarily to place the innocent party in the position they would have been in if the contract had been performed. Issues include causation, remoteness and mitigation. Equitable remedies such as specific performance are discretionary and not available in every case.

Problem-question method

Use IRAC: identify the Issue, state the Rule, Apply it closely to the facts, then give a reasoned Conclusion. Avoid writing a general essay when the question gives a scenario.

Exam-ready checklist

- Work through offer -> acceptance -> consideration -> intention.
- Distinguish offer from invitation to treat.
- Know condition, warranty and innominate term.
- Identify the relevant vitiating factor from the facts.
- Structure problem answers using IRAC and discuss remedies separately.

Fast recall

If you cannot explain a concept in one or two sentences without looking, revisit that section. Aim to recall the definition, mechanism and one example.

Uni Notes keeps revision focused: concise explanations, useful detail, and diagrams only where they improve understanding.